

		to be performed is a proper county for trial of the action. Further, it will be noted that the county where the contract is made is deemed to be the county where it is to be performed, unless there is a special contract in writing to the contrary. No distinction is drawn between an action at law or in equity. Further, where the main relief sought is grounded upon a cause of action based on a contract obligation, the contract or nature of the case controls under the 'main relief' rule." (<i>Diepenbrock v. Auslen</i> (1960) 185 Cal.App.2d 747, 751.) Section 397 states in part: "The court may, on motion, change the place of trial in the following cases: (a) When the court designated in the complaint is not the proper court. (b) When there is reason to believe that an impartial trial cannot be had therein. (c) When the convenience of witnesses and the ends of justice would be promoted by the change." Application Although Defendants have performed legal services related to Orange County litigation, Plaintiffs have not opposed the motion and have therefore not demonstrated Defendants "contracted to perform an obligation" in Orange County. Moreover, the statute states generally, the county "where the obligation is incurred is the county where it is to be performed," and the parties' contract was entered or "incurred" in San Diego.
11	Munoz v. Pacific Woods, LLC 2022-01248823 Motion to Dismiss/Strike CMC	Defendant Peter Arzola dba Absolute Services' motion to dismiss the Third Amended Complaint is OFF CALENDAR. Dismissal was entered as to Defendant on 8-4-26. (ROA 1138.) Moving Defendant to give notice. MOTION NO. 2:Defendant Peter Arzola dba Absolute Services' moves to strike portions of the Third Amended Complaint is OFF CALENDAR. Dismissal was entered as to Defendant on 8-4-26. (ROA 1138.) Moving Defendant to give notice.

12	Davis v. Pfaffly 2022-01294841 Demurrer to Answer Motion to Compel Answers to Form Interrogatories Motion to Compel Further Responses to Form Interrogatories Motion to compel further responses to special interrogatories Motion to compel production Motion to Compel Production Motion to compel response to requests for admissions Motion to compel response to request for admissions CMC	Motion 1: Demurrer to Answer Plaintiff Jaimie Davis' demurrer to Defendants' verified answer to the second amended complaint is OVERRULED. When a defendant bears the burden of proving a defense at trial, it is a "new matter" or "affirmative defense" that must be specially pleaded in the answer. (See <i>California Academy of Sciences v. County of Fresno</i> (1987) 192 Cal.App.3d 1436, 1442 [failure to plead equitable defenses waived those defenses].) A defendant raising such new matters must allege ultimate facts sufficient to prove the defense with the same level of detail that a plaintiff is required to allege ultimate facts to support a cause of action in a complaint. (<i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 384; 5 Witkin, Cal. Proc. 5th (2008) Pleading, § 1082, p. 515.) "Generally speaking, the determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action. [Citation.]" "There are, however, certain important differences between these two kinds of demurrer. An important difference is that in the case of a demurrer to the answer, as distinguished from a demurrer to the complaint, the defect in question need not appear on the face of the answer. The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer." (<i>South Shore Land Co. v. Petersen</i> (1964) 226 Cal.App.2d 725, 733.) Here, Plaintiff's verified second amended complaint alleges causes of action for negligence, trespass, nuisance, willful and malicious conduct, and strict liability for fire suppression. The answer filed by Defendants adequately alleges affirmative defenses and responds to Plaintiff's allegations in compliance with the Code of Civil Procedure. Therefore, the demurrer is overruled. Motions 2-9: Motions to Compel Further Responses Plaintiff Jaimie Davis' Amended Motions to Compel Further Responses are DENIED. Defendants' request for monetary sanctions is GRANTED. Plaintiff moves to compel Defendants to Larry Gene Pfaffly and Carol A Pfaffly to serve further responses without objection to Plaintiff's Form Interrogatories, Set Two; Special Interrogatories, Set Two; Requests for Production, Set Two; and Requests for Admissions, Set Two ("Discovery"). Plaintiff also moves for an award of
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